

STATE OF NEW YORK

3339--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Real Property Taxation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT

to direct the department of taxation and finance to establish a pilot program for implementation of local land value taxation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. 1. The department of taxation and finance shall establish a
2 pilot program in up to five municipalities under which such munici-
3 palities shall develop a plan for implementation of land value taxation
4 that (a) classifies real estate included in such municipality's assess-
5 ment roll as (i) land or land exclusive of buildings, or (ii) buildings
6 on land; and (b) establishes a different local property tax rate for
7 each such class, provided the higher local property tax rate shall apply
8 to land or land exclusive of buildings.
- 9 2. The department of taxation and finance shall establish an applica-
10 tion procedure and any other criteria for the pilot program established
11 under subdivision one of this section, under which municipalities may
12 apply to participate in such pilot program. If a municipality having a
13 population greater than 50,000 applies for participation in such pilot
14 program, such municipality may designate a specific neighborhood or area
15 within such municipality that would participate in such program, if
16 selected. The department of taxation and finance shall send a notice of
17 selection for such pilot program to the chief executive officer of the
18 municipality and to the temporary president of the senate and the speak-
19 er of the assembly.
- 20 3. In order to apply to participate in the pilot program established
21 under subdivision one of this section, the legislative body of the
22 applicable municipality shall pass a local law, and a school district
23 shall pass a resolution, affirmatively authorizing the application
24 established under subdivision two of this section.
- 25 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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